

From: Scott Hicks </o=ExchangeLabs/ou=Exchange Administrative Group (FYDIBOHF23SPDLT)/cn=Recipients/cn=2635e676e3af425dae312fb421f55818-Scott Hicks>
Subject: ALPR Policy
To: Jeff Hagar <jhagar@sherwoodar.gov>; Jamie Hartman <jhartman@sherwoodar.gov>; Drew Edwards <dedwards@sherwoodar.gov>
Sent: March 13, 2026 4:55 PM (UTC+00:00)
Attached: Arkansas ALPR Laws 12-12-1801 thru 12-12-808.pdf, 11.08.00 Automatic License Plate Reader.docx
Take a look at this and see what you think and what suggestions do you have. I have also included the state statutes.

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12-12-1801. Title.

This subchapter is known and may be cited as the "Automatic License Plate Reader System Act".

History

Acts 2013, No. 1491, § 1.

12-12-1802. Definitions.

As used in this subchapter:

- (1) "Alert" means data held by the Office of Motor Vehicle, the Arkansas Crime Information Center including without limitation the Arkansas Crime Information Center's Missing Persons Information Clearinghouse, the National Crime Information Center, and the Federal Bureau of Investigation Kidnappings and Missing Persons database;
- (2) "Automatic license plate reader system" means a system of one (1) or more mobile or fixed automated high-speed cameras used in combination with computer algorithms to convert images of license plates into computer-readable data;
- (3)
- (A) "Captured plate data" means the global positioning device coordinates, date and time, photograph, license plate number, and any other data captured by or derived from any automatic license plate reader system.
- (B) Captured plate data shall not include any personal data;
- (4) "Governmental entity" means a lawfully created branch, department, or agency of the federal, state, or local government;
- (5) "Private landowner, private leaseholder, or commercial business" means a landowner, leaseholder, or commercial business that is not a governmental entity; and
- (6) "Secured area" means an area, enclosed by clear boundaries, to which access is limited and not open to the public, and entry is obtainable only through specific access-control points.

History

Acts 2013, No. 1491, § 1; 2025, No. 668, § 1.

12-12-1803. Restrictions on use.

(a) Except as provided in subsection (b) of this section, it is unlawful for an individual, partnership, corporation, limited liability company, association, or the State of Arkansas, its agencies, and political subdivisions to use an automatic license plate reader system.

(b) An automatic license plate reader system may be used:

(1) By a state, county, or municipal law enforcement agency for the comparison of captured plate data with data held by the Office of Motor Vehicle, the Arkansas Crime Information Center, the National Crime Information Center, a database created by law enforcement for the purposes of an ongoing investigation, and the Federal Bureau of Investigation for any lawful purpose;

(2) By parking enforcement entities for regulating the use of parking facilities;

(3) For the purpose of controlling access to secured areas;

(4) By a private landowner, private leaseholder, or commercial business for the purpose of promoting public safety, deterring crime, and monitoring access to private property owned or leased by the private landowner, private leaseholder, or commercial business, including ingress and egress to private property on a private road owned by the private landowner, private leaseholder, or commercial business; or

(5)

(A) By the Arkansas Highway Police Division of the Arkansas Department of Transportation for the electronic verification of registration, logs, and other compliance data to provide more efficient movement of commercial vehicles on a state highway.

(B) An automatic license plate reader system used under subdivision (b)(5)(A) of this section shall be installed at an entrance ramp at a weigh station facility for the review of a commercial motor vehicle entering the weigh station facility.

History

Acts 2013, No. 1491, § 1; 2015, No. 849, § 1; 2017, No. 250, § 9; 2017, No. 707, § 18; 2025, No. 668, § 2.

12-12-1804. Protections.

(a) Except as provided under subsection (b) of this section, captured plate data obtained for the purposes described under § 12-12-1803(b) shall not be preserved for more than:

(1) Sixty (60) days by a private landowner, private leaseholder, or commercial business; or

(2) One hundred fifty (150) days by all other eligible entities.

(b) Captured plate data obtained by an entity under § 12-12-1803(b)(1) may be retained as part of an ongoing investigation and shall be destroyed at the conclusion of either:

(1) An investigation that does not result in any criminal charges being filed; or

(2) Any criminal action undertaken in the matter involving the captured plate data.

(c) A governmental entity that uses an automatic license plate reader system under § 12-12-1803(b)(1) shall update the captured plate data collected under this subchapter every twenty-four (24) hours if updates are available.

(d)

(1) Except as provided under subdivision (d)(2) of this section, a governmental entity authorized to use an automatic license plate reader system under § 12-12-1803(b) shall not sell, trade, or exchange captured plate data for any purpose.

(2) Captured plate data obtained by a law enforcement agency under § 12-12-1803(b)(1) that indicates evidence of an offense may be shared with other law enforcement agencies.

(3) A governmental entity may only compel the release of captured plate data from a user under § 12-12-1803(b)(2), § 12-12-1803(b)(3), § 12-12-1803(b)(4), or § 25-16-705(a) through a valid subpoena.

(e)

(1) Except as provided under subdivision (e)(2) of this section, a private landowner, private leaseholder, or commercial business authorized to use an automatic license plate reader system under § 12-12-1803(b) shall not sell, trade, or exchange captured plate data for any commercial purpose.

(2)

(A) Captured plate data obtained by a private landowner, private leaseholder, or commercial business under § 12-12-1803(b)(4) may be shared with a third-party processor providing asset protection analytical services on the captured plate data as part of a contractual agreement with the private landowner, private leaseholder, or commercial business.

(B) The terms of the contractual agreement shall expressly prohibit a third-party processor from using the captured plate data for any other purpose and impose a data retention period not to exceed sixty (60) days from receipt of the captured plate data.

History

Acts 2013, No. 1491, § 1; 2025, No. 668, § 2.

12-12-1805. Practice and usage data preservation.

(a) An entity that uses an automatic license plate reader system under § 12-12-1803(b)(1), § 12-12-1803(b)(2), § 12-12-1803(b)(3), or § 12-12-1803(b)(5) shall:

(1) Compile statistical data identified in subsection (b) of this section every six (6) months into a format sufficient to allow the general public to review the compiled data;

(2) Preserve the compiled data for eighteen (18) months; and

(3)

(A) Promulgate rules and policies concerning the manner and method of obtaining, retaining, and destroying captured plate data, including without limitation specific rules and policies concerning retention of material in excess of one hundred fifty (150) days under § 12-12-1804(b), and make those rules and policies available for public inspection.

(B) Failure to comply with subdivision (a)(3)(A) of this section shall be grounds for a court of competent jurisdiction to exclude any evidence obtained under this subchapter.

(b) The preserved data shall include:

(1) The number of license plates scanned;

(2) The names of the lists against which captured plate data were checked; and

(3) For each check of captured plate data against a list:

(A) The number of confirmed matches;

(B) The number of matches that upon further investigation did not correlate to an alert; and

(C) The number of matches that resulted in arrest and prosecution.

(c) A private landowner, private leaseholder, or commercial business that uses an automatic license plate reader system under § 12-12-1803(b)(4) shall:

(1) Compile statistical data every six (6) months that includes the:

(A) Number of license plates scanned; and

(B) Number of confirmed matches; and

(2) Make reports of the compiled plate data available in a timely manner to the Legislative Council upon a request from the chairs of the Legislative Council.

History

Acts 2013, No. 1491, § 1; 2025, No. 668, § 2.

12-12-1806. Use of data and data-derived evidence.

Captured plate data and evidence derived from it shall not be received in evidence in any trial, hearing, or other proceeding before any court, grand jury, department, officer, agency, regulatory body, legislative committee, or other authority of the state or a political subdivision of the state if the disclosure of that information would be in violation of this subchapter.

History

Acts 2013, No. 1491, § 1.

12-12-1807. Penalties.

(a) A person who violates this subchapter shall be subject to legal action for damages to be brought by any other person claiming that a violation of this subchapter has injured his or her business, person, or reputation.

(b) A person so injured shall be entitled to actual damages or liquidated damages of one thousand dollars (\$1,000), whichever is greater, and other costs of litigation.

(c) The Attorney General may bring an action to enforce a violation of this subchapter under the Deceptive Trade Practices Act, § 4-88-101 et seq.

History

Acts 2013, No. 1491, § 1; 2025, No. 668, § 3.

12-12-1808. Privacy.

(a)

(1) Captured plate data or data obtained from the Office of Motor Vehicle may be disclosed only:

(A) To the person to whom the vehicle is registered;

(B) After the written consent of the person to whom the vehicle is registered; or

(C) If the disclosure of the data is permitted by the Driver's Privacy Protection Act of 1994, 18 U.S.C. § 2721 et seq., as it existed on January 1, 2013.

(2) Practice and usage data compiled and preserved under § 12-12-1806 are a public record for purposes of the Freedom of Information Act of 1967, § 25-19-101 et seq.

(b) Upon the presentation to an appropriate governmental entity of a valid, outstanding protection order protecting the driver of a vehicle jointly registered with or registered solely in the name of the individual against whom the order was issued, captured plate data shall not be disclosed except as the result of a match under § 12-12-1803(b).

History

Acts 2013, No. 1491, § 1.

AUTOMATIC LICENSE PLATE READER (ALPR) POLICY

PURPOSE: The purpose of this policy is to establish guidelines governing the use, operation, access, management, retention, auditing, and oversight of Automatic License Plate Reader (ALPR) technology used by the Sherwood Police Department.

This policy ensures ALPR technology is used to enhance legitimate law enforcement functions while protecting privacy with Arkansas law and recognized law enforcement accreditation standards.

POLICY: It is the policy of the Sherwood Police Department to utilize Automatic License Plate Reader technology to assist officers in the detection of criminal activity, recovery of stolen vehicles, identification of wanted persons, location of missing persons, and other legitimate criminal justice purposes.

ALPR technology shall be used only for official law enforcement purposes.

The Sherwood Police Department will operate and manage ALPR systems in compliance with Arkansas Code Annotated §12-12-1801 through §12-12-1808

DEFINITIONS

1. Automatic License Plate Reader (ALPR / LPR): A system consisting of cameras and computer software that automatically captures license plate images, converts them to readable data, and compares the plate number against law enforcement databases.
2. ALPR System: A system of one (1) or more mobile or fixed automated high-speed cameras used in combination with computer algorithms to convert images of license plates into computer-readable data
3. Hot List: A database of license plates associated with stolen vehicles, wanted persons, missing persons, criminal investigations, or other law enforcement alerts maintained by ACIC, NCIC, or other authorized databases.
4. ALPR Data: Information collected by the ALPR system including the license plate number, image of the plate and vehicle, date, time, and location of the scan.
5. “Hit” and/or “Alert”: An automated alert generated when a license plate scan matches a plate within a hot list database held by the Office of Motor Vehicle, the Arkansas Crime Information Center including without limitation the Arkansas Crime Information Center's Missing Persons Information Clearinghouse, the National Crime Information Center, and the Federal Bureau of Investigation Kidnappings and Missing Persons database;

AUTHORIZED USERS

1. Only Sherwood Police Department personnel authorized by the Chief of Police or designee may access or operate ALPR systems.
2. Access shall be limited to employees who:

- a. Have completed department-approved training.
- b. Have been assigned individual login credentials.

AUTHORIZED USE

- 1. ALPR systems may be used during legitimate law enforcement activities including:
 - a. Routine patrol operations
 - b. Directed patrol operations
 - c. Criminal investigations
 - d. Stolen vehicle recovery
 - e. Missing persons investigations
 - f. Locating wanted persons
 - g. Intelligence development related to criminal activity
 - h. Homeland security or public safety threats
 - i. Other law enforcement activities approved by the Chief of Police or designee.

PROHIBITED USE

- 1. ALPR systems shall never be used for personal purposes.
 - a. The following uses are strictly prohibited:
 - i. Immigration enforcement activities unrelated to a criminal investigation
 - ii. Routine traffic enforcement for minor violations
 - iii. Harassment or intimidation of any person
 - iv. Surveillance based solely on a protected class, including:
 - 1. Race
 - 2. Sex
 - 3. Religion
 - 4. National origin
 - 5. Sexual orientation
 - 6. Disability
 - v. Personal use, including checking license plates of acquaintances, neighbors, or personal interests
 - vi. Any use unrelated to official law enforcement duties.
- 2. Violation of this policy may result in disciplinary action.

ALPR OPERATION

- 1. Deployment
 - a. ALPR systems may be deployed for the following but are not limited to:
 - i. On patrol vehicles (mobile ALPR)
 - ii. At fixed locations
 - iii. During special operations
 - iv. During crime suppression operations
 - v. During criminal investigations

- vi. During traffic safety operations when related to criminal activity.
- 2. Hit Verification
 - a. When an ALPR alert occurs the following steps:
 - i. The officer must visually verify the license plate.
 - ii. The officer must confirm the alert through ACIC/NCIC.
 - iii. An ALPR hit **shall not be the sole basis for a traffic stop** without verification.

DATA MANAGEMENT

- 1. Data Storage
 - a. ALPR data shall be stored on secure servers approved by the department.
- 2. Data Retention
 - a. Captured ALPR plate data shall not be retained longer than one hundred fifty (150) days, unless associated with a criminal investigation or prosecution.
- 3. Data Access
 - a. Access to ALPR data is limited to authorized users conducting legitimate criminal justice queries.
 - b. All system activity is logged and subject to review.
- 4. Data Sharing
 - a. ALPR data may be shared only with:
 - i. Authorized law enforcement agencies
 - ii. Prosecutors
 - iii. Courts pursuant to legal process
- 5. Captured plate data shall not be sold, traded, or shared for non-law enforcement purposes.

PRIVACY PROTECTIONS

- 1. The Sherwood Police Department recognizes the importance of protecting personal privacy.
 - a. ALPR data shall only be disclosed in accordance with:
 - i. Arkansas Code §12-12-1801 through §12-12-1808
 - ii. Arkansas Freedom of Information Act.

TRAINING REQUIREMENTS

- 1. All ALPR operators must complete department-approved training prior to system use.
 - a. Training will include:
 - i. Operation of ALPR equipment
 - ii. Proper response to ALPR alerts
 - iii. Data retention and security requirements
 - iv. Department policy compliance.
 - b. Training shall be documented and maintained in departmental training records.

SUPERVISORY RESPONSIBILITIES

1. Supervisors shall ensure:
 - a. Officers comply with this policy.
 - b. Any misuse of ALPR systems is investigated.
 - c. ALPR equipment issues are reported promptly.
2. Supervisors may review ALPR system activity logs to ensure proper use.

ALPR SYSTEM AUDITS

1. Audit Frequency
 - a. The Chief of Police or designee shall conduct ALPR audits at least annually.
2. Audit Scope
 - a. Audits shall examine:
 - i. User access logs
 - ii. Query justification
 - iii. Compliance with retention requirements
 - iv. Compliance with prohibited uses
 - v. Data security practices
 - vi. Policy compliance.
3. Documentation
 - a. Audit findings shall be documented and retained for no less than three years for accreditation and compliance purposes.

REPORTING REQUIREMENTS

1. The Chief of Police or designee shall compile a statistical report every six (6) months containing:
 - a. Total license plates scanned
 - b. Databases names queried
 - c. Number of hits
 - d. Number of confirmed hits
 - e. False alerts
 - f. Arrests and prosecutions resulting from ALPR use
 - g. Investigations initiated from ALPR alerts.
2. These reports shall be retained for eighteen (18) months and be available for public review upon request.